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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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General Comment

March 15, 2025

From:

Baillie Puckett, MFA

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Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

As a professional writer, I have studied for years to hone the skills necessary to write stories of all kinds--short stories, novels, and even the occasional poem. I don't make a lot of money at the moment but what I do make is being threatened right now by the forced implication of AI systems. OpenAI, along with Microsoft, Google, Apple, and other Big Tech companies are threatening to destroy creative industries by demanding that the American government allows special carve outs in copyright law.

Large language models are trained on the creative work crafted by hard-working people. The work of my friends and my colleagues, along with the work of hundreds of thousands of American creators, was taken and fed into these "learning models" without consent or compensation. These generative "AI" models are not intelligent by any means--they are fed our work and spit it back out without the context or thought that went into the original work. That is not intelligence. That is plagiarism. Big Tech companies want to then sell that spit-out work to the people who hire creatives in the first place. We're competing with plagiarists and being cut out of the market.

Big Tech companies want the American government to create loopholes to make the theft and exploitation of American creators' copyrighted work legal. They say that their machine "learning" is a matter of "fair use." Fair use, however, requires thought and understanding of the initial work. A computer cannot discern thought and therefore cannot use this material fairly.

The Internet is not meant to be stolen. It's an exchange of information, thoughts, and emotion across the world. And it's not for sale. Big Tech companies want the administration to believe that allowing copyright violations will somehow stifle American innovation. But if creators cannot protect their work from thieves like OpenAI, there will be no incentive to create and innovate. Instead, we will create a cycle of the machine-learning that simply tries to reinvent the wheel and sell it back to us at a higher cost.

How are writers supposed to be willing to create and innovate if every attempt at creation is swiftly stolen by corporate tech companies? How is this profitable for anyone?

If the government is interested in protecting American innovation, it must protect American creators. Copyright law cannot be gutted to allow Big Tech companies the opportunity to exploit and steal from not only American creators but the everyday American man trying to simply exist without permission, compensation, and most importantly: transparency.

This administration's AI Action Plan should focus not on giving Big Tech companies an opportunity to burgle the average American, but rather on ensuring a fair marketplace:

First, the government must ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

Thank You,

Baillie Puckett